



CHAPTER lix.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Hertford and Middlesex and Watford. [4th August 1926.]

A.D. 1926

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52
Vict. c. 41.

And whereas it is requisite that the said Orders should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders as amended and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force.

Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (No. 10) Act 1926.

Short title.

A.D. 1926.

SCHEDULE.

COUNTIES OF HERTFORD AND MIDDLESEX

*Hertford and
Middlesex
Order.* *Provisional Order made in pursuance of the Local Govern-
ment Act 1888 for altering the boundary between
Counties.*

WHEREAS by Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any county;

And whereas the several parishes named in column 1 of Part I. of the Schedule to this Order are wholly situate in the administrative County of Hertford and the several parishes named in column 1 of Part II. of that Schedule are wholly situate in the administrative County of Middlesex and those parishes are respectively included in or are co-extensive with the union the urban or rural district the electoral division the petty sessional division and the coroner's district the name of which is set opposite the name of the parish in columns 2 to 6 of the Schedule;

And whereas a representation has been made to the Minister of Health by the County Councils of Hertford and Middlesex that it is desirable that the common boundary of the Counties of Hertford and Middlesex should be altered so as to bring the entire width of certain highways repairable by the inhabitants at large within one of those counties:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders as follows:—

Definitions:

1. In this Order unless the context otherwise requires—

“ The Act of 1888 ” means the Local Government Act 1888;

“ The appointed day ” means the First day of October Nineteen hundred and twenty-six;

“ The County of Hertford ” and “ the County of Middlesex ” mean respectively the administrative County of Hertford and the administrative County of Middlesex;

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“ The maps ” means the triplicate maps marked “ Map
 “ referred to in the Counties of Hertford and Middlesex
 “ Order 1926 ” and sealed with the official seal of the
 Minister of Health ;

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 —
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 Order.*

“ The Minister ” means the Minister of Health.

2. Save as otherwise expressly provided this Order shall
 come into operation on the First day of October Nineteen hundred
 and twenty-six.

Commence-
 ment of
 Order.

3. The boundary between the Counties of Hertford and
 Middlesex and the several parishes named in column 1 of the
 Schedule to this Order shall be altered as follows :—

Alteration of
 county
 boundaries
 and parishes.

(a) The part of the Parish of South Mimms which on the
 maps is coloured red and thereon is indicated by the
 letters A and B shall cease to form part of the County
 of Middlesex and of the said Parish and shall be trans-
 ferred to and form part of the County of Hertford and
 of the Parish of Ridge ;

(b) The part of the Parish of Ridge which on the maps
 is coloured blue and thereon is indicated by the letters
 B and C shall cease to form part of the County of
 Hertford and of the said Parish and shall be transferred
 to and form part of the County of Middlesex and of the
 Parish of South Mimms ;

(c) The part of the Parish of Hendon which on the maps
 is coloured yellow and thereon is indicated by the
 letters D and E shall cease to form part of the County
 of Middlesex and of the said Parish and shall be trans-
 ferred to and form part of the County of Hertford and
 of the Parish of Shenley.

4.—(1) One of the maps shall be deposited in the office
 of each of the following persons namely—

Deposit
 and copies
 of maps.

(a) The Minister ; and

(b) The clerk of the County Council of Hertford ; and

(c) The clerk of the County Council of Middlesex.

(2) A copy of the map deposited with the clerk of the County
 Council of Hertford certified by him to be true shall be sent
 within one month after the date of the Act of Parliament
 confirming this Order to the clerk of each district council affected
 by this Order to the Board of Inland Revenue to the Com-
 missioners of Customs and Excise to the Registrar-General
 to the Board of Trade to the Minister of Transport to the
 Minister of Agriculture and Fisheries to the Electricity Com-
 missioners and to the Postmaster-General.

5.—(1) Copies of or extracts from the map deposited with
 the clerk of the County Council of Hertford or the clerk of the

Copies of
 maps to be
 evidence.

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A.D. 1926. County Council of Middlesex certified by the clerk to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the alteration in pursuance of this Order of the boundary of a county or other area.

—
Hertford and Middlesex Order.

(2) The maps so deposited shall at all reasonable times be open to inspection by any person liable to any rate leviable within any urban or rural district affected by this Order and any such person shall be entitled to a copy of or extract from either of those maps certified by the clerk of the county council to be true on payment of a reasonable fee to be determined by the county council.

(3) All fees so received shall be carried to the credit of the county fund.

Alteration of unions districts electoral and petty sessional divisions &c. 6.—(1) Any area by this Order transferred to any parish mentioned in column 1 of the Schedule to this Order shall form part of the union and of the urban or rural district as the case may be of the electoral division of the petty sessional division and of the coroner's district respectively named opposite the name of the parish in columns 2 to 6 of that Schedule:

Provided that—

(a) every person committing an offence in any of the transferred areas prior to the appointed day shall be tried and dealt with as if this Order had not been made;

(b) every proceeding which prior to the appointed day shall have been begun by or before any justice or coroner in relation to any matter arising in or concerning any part of the transferred areas may be continued or completed in like manner as if this Order had not been made.

(2) The area by this Order transferred to the County of Middlesex shall form part of the Middlesex Districts Joint Smallpox Hospital District and the areas by this Order transferred to the County of Hertford shall cease to form part of that District.

(3) Any person in office immediately before the appointed day as a councillor for any area altered by this Order shall be deemed to have been elected or appointed for that area as altered by this Order.

Repair and maintenance of transferred parts of highways. 7.—(1) The liability for the repair and maintenance of any part of a highway constituting an area transferred by this Order shall as from the appointed day devolve upon the council of the rural district to which that area is by this

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Order transferred but any such liability shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

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(2) Nothing in this article shall affect the power of the county council of the county to which an area is by this Order transferred to declare any part of a highway constituting a transferred area to be a main road or shall affect the application to a transferred area of the Highway Act 1835 or of any general enactment relating to highways or main roads.

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Order.*

8. The area by this Order transferred from the Hendon Urban District to the Barnet Rural District shall cease to form part of the area to which the resolution of the Hendon Urban District Council dated the Twelfth day of February Nineteen hundred and twenty-three deciding that a town planning scheme should be prepared extends and shall be transferred to and form part of the area to which the resolution of the Barnet Urban District Council dated the Sixth day of October Nineteen hundred and twenty-five extends deciding that a town planning scheme should be prepared for an area which includes part of the Barnet Rural District.

Town
planning.

9.—(1) Subject to the provisions of this Order any adoptive Act local Act order of a government department or local authority byelaw regulation or scale of charges which immediately before the appointed day is in force in—

Adoptive or
local Acts
orders
byelaws re-
gulations &c.

(a) any area transferred by this Order by reason of that area forming part of a county urban or rural district parish or contributory place shall save as hereinafter provided cease to be in force within that area; and

(b) any county urban or rural district parish or contributory place to which an area is transferred by this Order shall extend to that transferred area.

(2) In this article "local Act" includes any Act for the confirmation of a Provisional Order and the Order thereby confirmed and "scale of charges" includes any list of tolls or table of fees and payments.

10.—(1) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that Section shall have effect—

Adaptation
of provisions
as to adjust-
ments.

(a) As if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Order or by anything done in pursuance of this Order; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the

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authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

(2) This article shall come into operation on the date of the Act of Parliament confirming this Order.

Pending
actions &c.

11.—(1) Any action cause of action or proceeding which immediately before the appointed day is pending or existing by or against any district council in relation exclusively to any area transferred by this Order shall not be in anywise prejudicially affected by reason of this Order but may be continued prosecuted and enforced by or against the council of the rural district to which such area is transferred.

(2) All legal proceedings pending immediately before the appointed day may be amended in such manner as may be necessary or proper in consequence of this Order.

Existing
contracts
and
instruments.

12. All contracts agreements and other instruments (subsisting immediately before the appointed day) entered into or made by any district council in relation exclusively to any area transferred by this Order shall be of as full force and effect against or in favour of the council of the rural district to which such area is transferred and may be continued and enforced as fully and effectually as if instead of that district council the council of the rural district to which the area is transferred had been a party thereto.

Saving for
statutory
undertakers.

13. Nothing in this Order shall alter the area for the supply of gas water or electricity by any company or local authority under any local Act or Provisional Order confirmed by Parliament or under any special order made in pursuance of the Gas Regulation Act 1920 or the Electricity (Supply) Acts 1882 to 1922 or shall prejudice or affect the existing rights and powers of any such company or local authority under any such Act or Order.

Saving for
ecclesiastical
divisions and
charities.

14. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Saving for
contribution
orders and
precepts.

15. Notwithstanding the alterations of area effected by this Order all contribution orders and precepts made or issued before the appointed day shall be as valid in law as if this Order had not been made.

Short title.

16. This Order may be cited as the Counties of Hertford and Middlesex Order 1926.

The SCHEDULE.

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Names of Parishes.	Names of Unions.	Names of Urban or Rural Districts.	Names of Electoral Divisions.	Names of Petty Sessional Divisions.	Names of Coroners' Districts.
1.	2.	3.	4.	5.	6.
		PART I.			
Ridge -	Barnet	Barnet Rural District	Shenley -	Barnet -	St. Albans.
Shenley -	Barnet	Barnet Rural District	Shenley -	Barnet -	St. Albans.
		PART II.			
Hendon -	Hendon	Hendon Urban District	Hendon North	Core -	Central.
South Mimms	Barnet	South Mimms Rural District	South Mimms.	South Mimms.	Central.

Given under the official seal of the Minister of Health this
Twenty-sixth day of April One thousand nine hundred
and twenty-six.

(L.S.)

L. G. BROCK
Assistant Secretary Ministry of Health.

BOROUGH OF WATFORD.

Provisional Order made in pursuance of the Local Government Act 1888 for the extension of a Borough.

*Watford
Extension
Order.*

WHEREAS by Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough;

And whereas the existing Borough of Watford in the Administrative County of Hertford is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Watford and act by the Council of the Borough;

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And whereas the Borough comprises the Parishes of Watford Urban and Oxhey and is an Urban District under the jurisdiction of the Mayor Aldermen and Burgesses acting by the Council;

And whereas by agreement with the County Council of Hertford the Urban District Council of Watford relinquished under Section 20 of the Education Act 1902 in favour of the County Council their powers and duties as a local education authority for the purposes of Part III. of that Act and the Borough of Watford forms part of the area of the County Council as the local education authority for elementary education;

And whereas the Parish of Watford Rural in the Administrative County of Hertford immediately adjoins the Borough and is a contributory place in the Rural District of Watford and is subject to the jurisdiction of the Rural District Council of Watford:

Now therefore the Minister of Health in pursuance of the powers given to him by Sections 54 and 59 of the Local Government Act 1888 and of all other powers enabling him in that behalf hereby orders that on and after the date of the Act of Parliament confirming this Order the following provisions shall take effect:—

PART I.

INTERPRETATION AND COMMENCEMENT.

Definitions.

1. In this Order unless the context otherwise requires—
 - “The Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;
 - “The added area” means that part of the existing Parish of Watford Rural and of the Rural District of Watford which is coloured yellow and blue on the maps and is added to the existing Borough of Watford by this Order;
 - “The Borough” means the existing Borough of Watford as extended by this Order;
 - “The commencement of this Order” means the First day of October Nineteen hundred and twenty-six;
 - “The Corporation” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;
 - “The County” and “the County Council” mean respectively the Administrative County of Hertford and the County Council of that County;

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“ The excluded part of Watford Rural ” means the part of the existing Parish of Watford Rural which is not added to the existing Borough by this Order ;

“ The Guardians ” means the Guardians of the Watford Poor Law Union ;

“ The maps ” means the duplicate maps marked “ Map of “ the Borough of Watford as extended by the Watford “ (Extension) Order 1926 ” and sealed with the official seal of the Minister ;

“ The Minister ” means the Minister of Health ;

“ The Municipal Corporations Acts ” means the Municipal Corporations Act 1882 and the Acts amending and extending the same ;

“ The Parish Council ” means the Parish Council of Watford Rural ;

“ The Parish of Watford Urban ” and “ the Parish of Watford Rural ” mean respectively each of those existing parishes as altered by this Order ;

“ The Rural District ” and “ the Rural Council ” mean respectively the Rural District of Watford and the Rural District Council thereof ;

“ Existing ” in relation to any area altered by this Order means existing immediately before the commencement of this Order ;

“ Local Authority ” means a local authority as defined in Section 3 of the Local Government and other Officers’ Superannuation Act 1922 and includes a Standing Joint Committee of a county ;

“ Officer ” includes a servant and any person whose remuneration is paid by a Local Authority.

2. This Order shall except so far as is otherwise herein expressly provided and except so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the First day of October Nineteen hundred and twenty-six :

Provided that for the purposes of all proceedings preliminary or relating to any election for any area affected by this Order to be held on a day later than the Thirtieth day of September Nineteen hundred and twenty-six this Order shall operate from the date of the Act of Parliament confirming this Order.

PART II.

ALTERATIONS OF BOUNDARY.

3.—(1) The boundary of the existing Borough the area whereof is coloured pink on the maps shall be altered so as to

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*Watford
 Extension
 Order.*

Commence-
 ment of
 Order.

Extension of
 Borough.

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A.D. 1926. include in addition to that area so much of the Rural District as comprises the added area.

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Order.*

(2) The boundary of the Borough shall be that shown by the red line on the maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

*Alteration of
Parish.*

4. The added area shall be separated from the existing Parish of Watford Rural and shall be added to the existing Parish of Watford Urban.

*Deposit and
copies of
maps.*

5.—(1) One of the maps shall be deposited in the office of the Minister and the duplicate map shall be deposited by the town clerk of the existing Borough at his office.

(2) Copies of the map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the Clerk of the County Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Board of Trade to the Minister of Transport and to the Minister of Agriculture and Fisheries.

*Copies of
map to be
evidence.*

6.—(1) Copies of or extracts from the map deposited with the town clerk and certified by him to be true shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of the map so far as it relates to the boundary of the Borough.

(2) The map deposited with the town clerk shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation.

(3) All fees so received shall be carried to the Borough fund.

PART III.

PROVISIONS CONSEQUENT ON EXTENSION OF BOROUGH.

*Alteration of
wards.*

7. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect :—

(1) For the purposes of the election of councillors of the Borough the added area shall be included in the Harebreaks Ward of the existing Borough ;

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(2) The councillors representing the existing Harebreaks Ward who are in office immediately before the commencement of this Order shall be deemed on such commencement to represent that Ward as extended by this Order and shall retire from office on the day on which they would have retired if this Order had not been made.

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—
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 Order.*

8. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

County and
 Borough
 Councils
 (Qualifica-
 tion) Act
 1914.

9.—(1) For the purpose of the election of county councillors the added area shall be included in the Watford (North) Electoral Division and the Harebreaks Polling District.

County
 electoral
 divisions
 and polling
 districts.

(2) Any person who immediately before the commencement of this Order is the county councillor representing the existing Watford (Rural) Electoral Division or the existing Watford (North) Electoral Division shall be deemed to have been elected to represent that Division as altered by this Order and shall retire from office on the day on which he would have retired if this Order had not been made.

10. The town clerk and all other officers of the Corporation of the existing Borough who hold office immediately before the commencement of this Order shall continue to be the town clerk and officers of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Officers of
 Corporation
 continued.

11. Subject to the provisions of this Order all property vested in the Corporation immediately before the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which immediately before the commencement of this Order are exercisable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which then attach to the Corporation in respect of the existing Borough shall attach to them in respect of the Borough.

Corporation
 property
 liabilities &c.

12.—(1) So much of any sums borrowed by the Corporation as will on the commencement of this Order be owing and charged upon any fund of or rate levied within the existing Borough shall be charged upon the corresponding fund of or rate to be levied within the Borough.

Mortgage
 debts of
 Corporation.

(2) All borrowed moneys to which this article applies shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the

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Extension
Order.
 Local Act
 and Orders.

13.—(1) Subject to the provisions of this Order the unrepealed provisions of—

- (a) The Watford Urban District Council Act 1909;
- (b) The Confirmation Acts specified in the First Schedule to this Order so far as such Acts respectively relate to the Provisional Orders mentioned in that Schedule; and
- (c) Any other Local Act or Provisional Order duly confirmed and affecting the existing Borough or the Corporation including any Local Act or Provisional Order passed or confirmed during the present Session of Parliament;

as the same respectively are in force within the existing Borough on the commencement of this Order shall extend and apply to the Borough and any reference therein to the Urban District of Watford and the Urban District Council of Watford or to the existing Borough and the Corporation shall be deemed to refer to the Borough and Corporation thereof.

(2) The provisions of any protective clause for the benefit of the Rural Council (or their predecessors) contained in any Local Act Confirmation Act or Provisional Order (by whomsoever obtained) shall in respect of all matters relating to or affecting any part of the added area enure to the benefit of the Corporation and shall be construed as if a reference to the Corporation were substituted for any reference to the Rural Council (or their predecessors) as the case may be.

(3) For the purposes of this article any order which has effect as if enacted by Parliament shall be deemed to be a Provisional Order confirmed by Parliament.

Extension of
 limits for
 supply by
 Corporation
 of water.

14.—(1) That portion of the added area which was not by the Rickmansworth and Uxbridge Valley Water Order 1917 as confirmed by the Gas and Water Provisional Orders Act 1917 included within the limits for the supply of water by the Rickmansworth and Uxbridge Valley Water Company shall be included within the limits for the supply of water by the Corporation under the Watford Urban District Council Act 1909 as extended by the Watford Order 1917 and the provisions of that Act and Order shall be altered and have effect accordingly.

(2) Any protective clause for the benefit of any local authority company or person contained in Part II. of the Watford Urban District Council Act 1909 or in the Watford Order 1917 shall extend to the Corporation in the exercise within the added area of their powers and duties under this article.

15. Nothing in this Order shall alter the area for the supply of water or gas by any company under any local Act or Provisional Order confirmed by Parliament or under any special order made in pursuance of the Gas Regulation Act 1920 or shall prejudice or affect the existing rights and powers of any such company under any such Act or Order.

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Saving for
 water or gas
 companies.

Borough of
 Watford
 Scheme
 1922.

16.—(1) References to the Borough of Watford in—

- (a) article 8 of the Borough of Watford Scheme 1922 which relates to the continuance of the County Council as the local education authority within the Borough of Watford for the purposes of elementary education;
- (b) article 9 of that Scheme relating to a consolidation of the police forces of the Borough of Watford and of the County; and
- (c) article 10 of that Scheme which relates to the exercise and performance by the County Council within the Borough of Watford of the powers duties and liabilities in respect of the appointment of analysts and other matters mentioned in that article;

shall be read as references to the Borough of Watford as extended by this Order.

(2) Save as aforesaid nothing in this Order shall affect the provisions mentioned in paragraph (1) of this article.

17.—(1) The agreement for a consolidation of police forces dated the Twenty-ninth of July Nineteen hundred and twenty-five and made between the Standing Joint Committee for the County the County Council and the Corporation shall have effect as if it related to the Borough exclusive of the area of the Parish of Oxhey and of any other part of the Borough which may for the time being be comprised within the Metropolitan Police District.

Agreement
 for consoli-
 dation of
 police forces.

(2) Save as aforesaid nothing in this Order shall affect the provisions of the agreement mentioned in paragraph (1) of this article.

18.—(1) It shall be the duty of the Corporation—

- (a) within six months after the commencement of this Order to submit for the approval of the Minister a scheme for sewerage that portion of the added area which is coloured yellow on the maps and to execute the scheme within three years after the date on which the sanction of the Minister to the borrowing of moneys to defray the expenses of carrying the scheme into effect has been given; and

Limiting
 time for
 submission
 and execu-
 tion of
 scheme for
 sewerage
 added area.

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- (b) within three years after the commencement of this Order to submit for the approval of the Minister a scheme for sewerage those portions of the added area which are coloured blue on the maps and to execute the scheme before the First day of April Nineteen hundred and thirty-two.

(2) In the event of the Corporation within the period prescribed by this article not submitting a sewerage scheme or not executing a sewerage scheme the requirements of this article may be enforced in the manner provided by Section 299 of the Public Health Act 1875 as if this article were an order of the Minister limiting the time for the performance by the Corporation of their duty in that behalf and the Corporation had not performed the duty hereby imposed within the time limited by the order.

Differential
rating.

19.—(1) Subject to the provisions of this article the total amount in the pound of the general district rate or rates to be made and levied by the Corporation upon any rateable hereditament situate within the differential area (as in this article defined) shall—

- (a) during the period of six months ending on the Thirty-first day of March Nineteen hundred and twenty-seven be less by two shillings and sixpence than the total amount in the pound of the general district rate or rates to be made and levied by the Corporation during the same period of six months upon any hereditament within the remainder of the Borough; and
- (b) in each of the years specified in column 2 of the Second Schedule to this Order be less than the total amount in the pound of the general district rate or rates to be made and levied by the Corporation in the same year upon any hereditament within the remainder of the Borough by the sum stated under the year in question in column 2 of that Schedule.

(2) As from the date on which the first new valuation list made for the Borough under the Rating and Valuation Act 1925 comes into force—

- (a) the general rate shall be substituted for the general district rate in paragraph (1) of this article and in the Second Schedule to this Order; and
- (b) the relief afforded by this article shall be given by means of deductions from the sums assessed by the Corporation in respect of contributions by the differential area to the expenses of the Corporation.

(3) Any relief from a general district rate or a general rate afforded in pursuance of this article shall be specified in all demand notes for rates issued to ratepayers of the differential

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area and the net amount in the pound of the rate shall be distinguished. A.D. 1926.

(4) In this article "the differential area" means those portions of the added area which are coloured blue on the maps.

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Extension
Order.

20.—(1) The provisions of the Baths and Washhouses Acts 1846 to 1925 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 the Public Libraries Acts 1892 to 1919 and the Private Street Works Act 1892 shall be in force within and apply to the Borough as if the same had been adopted for the Borough. Adoptive Acts.

(2) If before the commencement of this Order any provisions of the Public Health Act 1925 shall have been adopted by the Corporation and shall be in force within the existing Borough those provisions shall be in force within and apply to the Borough.

(3) The provisions of any Adoptive Act (other than the Burial Acts 1852 to 1906) shall subject to the foregoing provisions of this article cease to be in force within and apply to any part of the added area.

(4) The added area shall cease to be within the area for which the County Council are the library authority under the Public Libraries Acts 1892 to 1919 and are the local authority for the purposes of the Notification of Births Acts 1907 and 1915 and the Maternity and Child Welfare Act 1918.

(5) Any order under the Infectious Disease (Notification) Act 1889 or under any Adoptive Act mentioned in paragraph (1) or paragraph (2) of this article which is in force immediately before the commencement of this Order throughout the existing Borough shall extend and apply to the added area and any order under the Infectious Disease (Notification) Act 1889 in force on the day aforesaid within the added area shall save as hereinbefore provided cease to be in force within that area.

21. For the purposes of the Small Dwellings Acquisition Acts 1899 to 1923 the Corporation shall be the local authority for the Borough. Small Dwellings Acquisition Acts 1899 to 1923.

22.—(1) The Burial Acts 1852 to 1906 shall be in force within and apply to the Borough. Burial Acts 1852 to 1906.

(2) The reference in paragraph (2) of article 18 of the Watford (Extension) Order 1924 to the Borough of Watford and the Parish of Watford Rural shall be read as a reference to the Borough of Watford and the Parish of Watford Rural as altered by this Order.

23. References in the Watford Joint Hospital Orders 1902 to 1913 to the Urban District of Watford and the Urban District Council of Watford shall be read as references to the Borough of Watford Joint Hospital District.

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Order.*

and to the Corporation thereof and any reference in those Orders to the Chairman or Vice-Chairman of the Urban District Council of Watford shall be read as a reference to the Mayor or Deputy Mayor of the Borough.

Orders under
Shop Hours
Act 1904 or
Shops Acts
1912 to 1920.

24. Any order made under the Shop Hours Act 1904 or under the Shops Act 1912 or any subsequent Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of such Acts remain in force and apply to the area to which it applied before the commencement of this Order.

Byelaws
regulations
scales of
charges &c.

25.—(1) Subject to the provisions of this Order—

- (a) All byelaws and every scale of charges made by the Corporation (or their predecessors) which immediately before the commencement of this Order are in force throughout the existing Borough shall extend and apply to the Borough until such byelaws or scale of charges may expire be altered or repealed;
- (b) All byelaws made by the Rural Council (or their predecessors) and in force immediately before the commencement of this Order within the added area shall on such commencement cease to be in force therein except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to their surveyor or clerk one month at least before that date and have not been disapproved by that Council;
- (c) All byelaws made by the County Council and in force immediately before the commencement of this Order within the added area shall in so far as byelaws to the like effect could be made by the Corporation cease to be in force within that area.

(2) As regards any work within the exception in paragraph (1) (b) of this article the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District.

(3) Any proceedings which if this Order had not been made might have been taken by the County Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws which by virtue of this article

cease to be in force may be taken by the Corporation as if those byelaws had remained in force and the Corporation had been substituted therein for the County Council or the Rural Council as the case may require.

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 Extension
 Order.*

(4) In this article "byelaws" includes any regulation and "scale of charges" includes any list of tolls or table of fees or payments.

26.—(1) Without prejudice to the power of the County Council to cancel or vary any charge or allocation made under subsection (1) of Section 18 of the Education Act 1902 or under subsection (1) of Section 122 of the Education Act 1921—

(a) Such portion of any expenses incurred by the County Council to meet the liability on account of the outstanding balance of any loan transferred to the County Council from the late School Board for Watford as was in pursuance of the enactments aforesaid raised within the area of the existing Parishes of Watford Urban and Watford Rural shall be raised within the Parishes of Watford Urban and Watford Rural in the proportion which the assessable value of each of those Parishes according to the valuation lists in force on the Thirty-first day of March or the Thirtieth day of September preceding the issue of the precept of the County Council bears to the aggregate of the assessable values of those Parishes according to the same valuation lists;

(b) Save as hereinbefore provided any expenses charged before the commencement of this Order in pursuance of the enactments aforesaid on the existing Parish of Watford Urban shall be charged on the Parish of Watford Urban and any expenses so charged before such commencement on the existing Parish of Watford Rural shall be charged on the Parish of Watford Rural.

(2) In this article "assessable value" means assessable value for the purposes of the Agricultural Rates Acts 1896 and 1923.

(3) Article 24 of the Watford (Extension) Order 1924 is hereby repealed.

27. Subject to the provisions of this Order—

(1) The Rural Council shall cease to exercise any powers or discharge any duties within the added area;

(2) Any property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council—

(a) In relation exclusively to the added area or any part thereof shall by virtue of this Order be

Cesser of
 jurisdiction
 of Rural
 Council.
 Property &c.

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transferred to and vest in the Corporation as the urban authority for the execution of the Public Health Acts; and

(b) In relation to the added area or any part thereof conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888.

Powers &c.
of Parish
Council.

28.—(1) The Parish Council of the existing Parish of Watford Rural shall be deemed to have been elected as and shall be the Parish Council of that Parish as altered by this Order.

(2) Subject to the provisions of this Order any powers and duties transferred by or under the Act of 1894 to the Parish Council shall so far as regards the added area be vested in and imposed on the persons and authorities in or on whom they would be vested or imposed if the added area had been included in a parish within the Borough on the appointed day within the meaning of the Act of 1894.

(3) Any property or liabilities held or incurred by the Parish Council in relation exclusively to the added area or any part thereof for the purposes or by virtue of the powers and duties transferred by paragraph (2) of this article shall by virtue of this Order be transferred to and vest in or attach to the persons and authorities aforesaid.

(4) Any property or liabilities held or incurred by the Parish Council in relation to the added area or any part thereof conjointly with any other area shall if necessary be a matter for adjustment under Section 62 of the Act of 1888.

(5) Paragraphs (3) and (4) of this article shall not extend to property or liabilities held or incurred under the Burial Acts 1852 to 1906.

PART IV.

SUPPLEMENTARY PROVISIONS.

Application
of certain
provisions
of Watford
(Extension)
Order 1924.

29. For the purposes of this Order the provisions of Parts III. and IV. of the Watford (Extension) Order 1924 which are mentioned in the Third Schedule to this Order and are set out in the Schedule to the Ministry of Health Provisional Orders Confirmation (Watford Extension) Act 1924 shall apply with any necessary modifications as if they were in this Order set out and those provisions shall have effect and be read accordingly.

Guardians of
Poor.

30.—(1) For the purposes of the election of guardians the added area shall form part of the North Ward of the Parish of Watford Urban.

(2) The persons who immediately before the commencement of this Order are the guardians for the existing North Ward of the Parish of Watford Urban shall be deemed to have been elected as and shall be the guardians for that Ward as extended by this Order and shall retire from office on the day on which they would have retired if this Order had not been made.

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 Extension
 Order.*

31. The persons who immediately before the commencement of this Order are the rural district councillors for the existing Parish of Watford Rural shall be deemed to have been elected as and shall be the rural district councillors for the Parish of Watford Rural and shall retire from office on the day on which they would have retired if this Order had not been made.

Rural
 district
 councillors
 for Watford
 Rural.

32.—(1) As soon as practicable after the commencement of this Order the Rural Council as regards any cash balance in their hands immediately before such commencement shall estimate the proportion thereof derived from contributions paid by the added area and subject to a deduction on account of undischarged liabilities in respect of that area accruing up to the commencement of this Order shall transfer the amount to the Corporation.

Apportion-
 ment by
 Rural
 Council of
 balances &c.

(2) This article shall apply to any sum received after the commencement of this Order by the Rural Council under a precept issued before that date in respect of any area in which the added area is comprised as if such sum were a cash balance in the hands of the Council immediately before the commencement of this Order.

(3) The apportionment under this article of any balance or sum received under a precept shall be subject to review on an adjustment under this Order.

33. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that Section shall have effect—

Adaptation
 of provisions
 as to adjust-
 ments.

(a) As if in subsections (5) (6) and (7) thereof the expression "council" included any authority affected by this Order or by anything done in pursuance of this Order; and

(b) As if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority

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Adjustment
 on altera-
 tions of
 parishes.

and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction.

34. For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of the provisions of this Order which relate to the alteration of the area of any existing parish that Section shall have effect—

- (1) As if the Overseers of the Parish of Watford Urban and the Overseers of the Parish of Watford Rural or if the circumstances so require any persons who may be substituted for or added to those overseers by the Minister were within the meaning of the said Section as applied by this Order authorities affected by this Order;
- (2) As if the poor rate or any other rate leviable in pursuance of the said Section as applied by this Order were substituted for any fund mentioned in the Section; and
- (3) As if for subsections (6) and (7) of the said Section there were substituted the subsections hereunder appended that is to say :—

“ (6) If it is necessary for the purpose of giving
 “ effect to any agreement or award for an adjust-
 “ ment that a separate rate shall be levied in part
 “ of a parish only the agreement or award may
 “ authorise the making of such a separate rate as
 “ if it were a poor rate and as if the part of the
 “ parish on which it is to be levied were a whole
 “ parish.

“ (7) Any capital sum paid for the purposes of
 “ any adjustment or in pursuance of any order or
 “ award of an arbitrator shall be applied by such
 “ person in such manner and for such purpose as
 “ the Minister of Health may authorise or direct.”

Balances in
 accounts of
 Guardians
 Rural Coun-
 cil and
 Overseers.

35.—(1) Any balance on the commencement of this Order standing in the books of the Guardians or of the Rural Council to the credit or debit of the existing Parish of Watford Rural shall be a matter for adjustment under Section 62 of the Act of 1888.

(2) Any balance on the commencement of this Order in the hands of or due to the Overseers of the existing Parish of

A.D. 1926.

Watford Rural shall be a matter for adjustment under Section 62 of the Act of 1888.

Watford
Extension
Order.

36. Notwithstanding the alterations of area effected by this Order all contribution orders and precepts made or issued before the commencement of this Order shall be as valid in law as if this Order had not been made.

Saving for
contribution
orders and
precepts.

37. All rates made by the Overseers of the existing Parish of Watford Rural and not collected on the commencement of this Order in respect of hereditaments within the added area shall be collected and recovered by the Overseers of the Parish of Watford Rural or other proper officer of that Parish.

Arrears of
rates &c.

38.—(1) In the preparation of the autumn register of Nineteen hundred and twenty-six so far as it relates to any area affected by this Order it shall be competent to the Registration Officer of the Parliamentary County of Hertford to frame the register in separate parts for each area which will constitute a registration unit after this Order has come into operation instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

Provisions as
to register
of electors.

(2) If the register of local government electors for any electoral area affected by this Order is not so framed as to show the persons entitled to vote at an election or parish meeting to be held for an electoral division parish or ward or other voting area—

(a) the Town Clerk of the Borough in the case of an election for any voting area within the Borough; and

(b) the Registration Officer of the Parliamentary County of Hertford in the case of an election or parish meeting for any voting area outside the Borough;

shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election or parish meeting.

(3) It shall be the duty of the Overseers to render such assistance as may be required by the Town Clerk of the Borough or Registration Officer of the Parliamentary County for the purpose of such alteration or re-arrangement.

(4) Where in the opinion of the Secretary of State the circumstances so require the Secretary of State may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

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Extension
Order.*
Valuation
lists.

39. Until new valuation lists come into force—

- (1) The valuation list of the existing Parish of Watford Urban and the portion of the valuation list of the existing Parish of Watford Rural which relates to hereditaments in the added area shall together form the valuation list of the Parish of Watford Urban;
- (2) The remaining portion of the valuation list of the existing Parish of Watford Rural shall be the valuation list of the Parish of Watford Rural.

Overseers
assistant
overseers
and collec-
tor.

40.—(1) The Overseers of the existing Parish of Watford Urban or of the existing Parish of Watford Rural shall be the Overseers of the Parish of Watford Urban or of the Parish of Watford Rural (as the case may be).

(2) Any person holding immediately before the commencement of this Order the office of—

- (a) assistant overseer of the existing Parish of Watford Urban or of the existing Parish of Watford Rural; or
- (b) collector of poor rates of the existing Parish of Watford Rural;

shall act for that Parish as altered by this Order and shall continue to hold office upon the same terms and subject to the same regulations liabilities and provisions as now apply to him in respect of that office.

Compensa-
tion to exist-
ing officers.

41.—(1) Every officer in office on the date of the Act of Parliament confirming this Order who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary (and for whose compensation no other provision is made by any enactment for the time being in force) shall be entitled to compensation for that loss from the Corporation.

(2) Any officer whose services are dispensed with or whose salary is reduced within five years after the commencement of this Order because his services are not required or because his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed unless the contrary be shown to have suffered a direct pecuniary loss in consequence of this Order.

Determina-
tion of com-
pensation.

42.—(1) In determining the compensation payable to any person who becomes entitled to compensation in pursuance of this Order regard shall be had to the conditions and circumstances mentioned in subsection (1) of Section 120 of the Act of 1888

and the compensation shall not exceed the limit therein mentioned. A.D. 1926.

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(2) The provisions of Section 120 of the Act of 1888 shall apply to the determination and payment of compensation under this Order subject to the following and any necessary modifications :—

- (a) Any reference in that Section to the county council shall be construed as a reference to the Corporation and in subsection (7) of that Section for the words “ the same or any other county council ” there shall be substituted the words “ the council of any county or county borough or under any district council ”;
- (b) References in that Section to “ the passing of this Act ” shall be construed as references to the date on which the abolition of office takes effect or the direct pecuniary loss commences as the case may be; and
- (c) The expression in subsection (1) of that Section “ the “ Acts and rules relating to Her Majesty’s Civil “ Service ” shall mean the Acts and rules relating to Her Majesty’s Civil Service which were in operation at the date of the passing of the Act of 1888.

(3) The compensation payable under this Order to an officer who on the date of the Act of Parliament confirming this Order shall hold two or more offices under any local authority or local authorities and who shall have devoted the whole of his time to the duties of such offices shall not be reduced by reason of the fact that he has devoted only part of his time to each of such offices.

(4) If any officer was temporarily absent from his employment during the war whilst serving in His Majesty’s Forces or the Forces of the Allied or Associated Powers either compulsorily or with the sanction or permission of the local authority such period of temporary absence shall be reckoned as service under the local authority in whose employment he was immediately before and after such temporary absence :

Provided that in the case of an officer who after the Armistice voluntarily extended his term of service with the Forces no period of absence during such extension shall be so reckoned.

(5) The Corporation may in their discretion and in consideration of the fact that any officer was appointed to his office as a specially qualified person or of the fact that he had prior to his appointment served as a deputy assistant or clerk to

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Fund or rate from which compensation payable.	43. Any compensation payable under this Order to any person whose office or employment relates wholly or partly to sanitary purposes as defined in the Public Health Act 1875 shall be paid out of the district fund and general district rate of the Borough and to any other person out of the borough fund and borough rate of the Borough.
Compensation and superannuation.	44. No officer shall be entitled to receive both compensation under this Order for pecuniary loss and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.
Saving for qualification of councillors &c.	45. Any councillor or guardian who is to continue in office after the commencement of this Order shall not during his present term of office be deemed to lose his qualification for being a councillor or guardian by reason of the alterations of area made by this Order.
Ecclesiastical divisions and charities.	46. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.
Saving for 15 & 16 Geo. 5. c. 90.	47. Nothing in this Order shall affect the provisions of the Rating and Valuation Act 1925.
Short title.	48. This Order may be cited as the Watford (Extension) Order 1926 and the Watford (Extension) Order 1924 and this Order may be cited together as the Watford (Extension) Orders 1924 and 1926.

The SCHEDULES.

FIRST SCHEDULE.

A.D. 1926.

Watford
Extension
Order.

CONFIRMATION ACTS IN FORCE IN THE EXISTING BOROUGH.

Session and Chapter.	Short Title.	Provisional Order thereby confirmed.
60 & 61 Vict. c. lxxiii.	The Electric Lighting Orders Confirmation (No. 3) Act 1897.	The Watford Electric Lighting Order 1897.
4 Edw. 7. c. clxxv.	The Electric Lighting Orders Confirmation (No. 2) Act 1904.	The Watford Electric Lighting Order 1904.
3 & 4 Geo. 5. c. xxiii.	The Local Government Board's Provisional Orders Confirmation (No. 1) Act 1913.	The Watford Order 1913.
3 & 4 Geo. 5. c. cliii.	The Electric Lighting Orders Confirmation (No. 5) Act 1913.	The Watford Electric Lighting (Extension) Order 1913.
4 & 5 Geo. 5. c. cxx.	The Electric Lighting Orders Confirmation (No. 7) Act 1914.	The Watford Electric Lighting (Extension) Order 1914.
7 & 8 Geo. 5. c. lvii.	The Local Government Board's Provisional Orders Confirmation (No. 2) Act 1917.	The Watford Order 1917.
14 & 15 Geo. 5. c. xix.	The Ministry of Health Provisional Order Confirmation (Watford Extension) Act 1924.	The Watford (Extension) Order 1924.

SECOND SCHEDULE.

DIFFERENTIAL RATING TO GENERAL DISTRICT RATE.

Column 1.	Column 2.				
Description of Area.	Year ending 31st March 1928.	Year ending 31st March 1929.	Year ending 31st March 1930.	Year ending 31st March 1931.	Year ending 31st March 1932.
	s. d.	s. d.	s. d.	s. d.	s. d.
Those portions of the added area which are coloured blue on the maps.	5 0	4 0	3 0	2 0	1 0

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THIRD SCHEDULE.

*Watford
Extension
Order.*

PROVISIONS OF THE WATFORD (EXTENSION) ORDER 1924 WHICH
 ARE APPLIED BY THIS ORDER.

Provision applied.	Subject-matter of Provision.
PART III.	
Article 17 - -	Adaptation of Orders under the Public Health Acts Amendment Act 1907.
Article 20 - -	Adaptation of Orders under Section 33 of the Act of 1894.
Article 22 - -	Urban powers &c. in excluded part of Watford Rural.
PART IV.	
Article 37 - -	Alteration of the basis of the county rate of the County.
Article 38 - -	Poor Law settlements in the existing Parishes of Watford Urban and Watford Rural.
Article 46 - -	Savings for legal proceedings contracts &c.
Article 47 - -	Saving for statutory powers of the Secretary of State the Minister and the County Council.
Article 48 - -	Saving for powers of the County Council for division of the Parliamentary County into polling districts and the appointment of polling places.
Article 49 - -	Saving for powers of the County Council for division of the County into polling districts for county council elections and of naming polling places.

Given under the Official Seal of the Minister of Health this
 Twenty-ninth day of April One thousand nine hundred
 and twenty-six.

(L.S.)

H. W. S. FRANCIS
 Assistant Secretary Ministry of Health.

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